

CITIBANK, N.A. v. BRIAN CANNON
Case No. CL24-06685

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Plaintiff served this motion by mail. Defendant BRIAN CANNON's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

Should Plaintiff refile this motion, Plaintiff must personally serve the motion.

While the court appreciates the use of stipulations by Plaintiff's counsel in this manner, the practice compares to the use an impermissible confession of judgment without appearance by a named Defendant which fails to satisfy due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

WURM v. RUSSELL
Case No. CU23-05272

Demurrer

TENTATIVE RULING:

Defendant's demurrer to Plaintiff's complaint is OVERRULED as to the cause of action for malicious prosecution and SUSTAINED WITHOUT LEAVE TO AMEND as to the causes of action for intentional infliction of emotional distress and negligent infliction of emotional distress.

The demurrer to Plaintiff's first cause of action for malicious prosecution is overruled. To establish a cause of action for malicious prosecution, a plaintiff must demonstrate: 1) the defendant commenced or caused to be commenced a prior action that was pursued to a legal termination in the plaintiff's favor, 2) the action was brought without probable cause, and 3) the action was initiated with malice. (*Brennan v. Tremco* (2001) 25 Cal.4th 310, 313; *Sheldon Appel Co. v. Albert & Olier* (1989) 47 Cal.3d 863, 871-872; *Sierra Club Found. v. Graham* (1999) 72 Cal.App.4th 1135, 1147.) Plaintiff has adequately alleged these essential elements. Plaintiff alleged that Defendant filed a request for civil harassment restraining order containing allegations that Defendant knew were false at the time of filing. (Complaint, ¶¶ 3-4.) Lack of probable cause and